NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT-II)
IN
COMPANY APPLICATION NO. (CAA)-52(ND)/2023

IN THE MATTER OF:

Abhipra Trading Private Limited ... **Applicant No.1/ Transferor Company No. 1**

AND

Graphic Research Consultants India Pvt. Ltd. ... **Applicant No.2/ Transferor Company No. 2**

AND

United Buildwell Private Limited ... **Applicant No.3/ Transferor Company No. 3**

AND

Vineeta Trading Private Limited ... **Applicant No.4/ Transferor Company No. 4**

AND

Vipul Eastern Infracon Private Limited ... **Applicant No.5/ Transferor Company No. 5**

WITH

Vipul Limited ... **Applicant No.6/ Transferee Company**

AND

Their Respective Shareholders And Creditors

Order Delivered on 20.12.2023

Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)
SH. RAHUL PRASAD BHATNAGAR, HON'BLE MEMBER (T)

PRESENT

For the Petitioners : Adv. Vikrant Rohila

ORDER

From perusal of the CIN number given in Master Data of the Transferee Company at Page 8 and intimation sent by the Transferee Company to BSE and NSE at Page 1190, it is observed that the Transferee Company is a listed entity.

2. We are sanguine that in terms of Regulation 37(2) of Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 the listed Companies are required to obtain approval of the Stock Exchange which is a pre-requisite before filing the scheme before the Tribunal. The relevant contents of Regulations 37 reads thus:

"**Draft Scheme of Arrangement & Scheme of Arrangement.**

37. *(1)Without prejudice to provisions of regulation 11, the listed entity desirous of undertaking a scheme of arrangement or involved in a scheme of arrangement, shall file the draft scheme of arrangement, proposed to be filed before any Court or Tribunal under sections 391-394 and 101 of the Companies Act, 1956 or under Sections 230-234 and Section 66 of Companies Act, 2013, whichever applicable, 210 [along with a non-refundable fee as specified in Schedule XI,] with the stock exchange(s) for obtaining the No-objection letter, before filing such scheme with any Court or Tribunal, in terms of requirements specified by the Board or stock exchange(s) from time to time.*

*(2)**The listed entity shall not file any scheme of arrangement under sections 391-394 and 101 of the Companies Act, 1956 or under Sections 230-234 and Section 66 of Companies Act, 2013, whichever applicable, with any Court or Tribunal unless***

it has obtained the No-objection letter from the stock exchange(s)

(3) ***The listed entity shall place the No-objection letter of the stock exchange(s) before the Court or Tribunal at the time of seeking approval of the scheme of arrangement****:*

Provided that the validity of the No-objection letter of stock exchanges shall be six months from the date of issuance, within which the draft scheme of arrangement shall be submitted to the Court or Tribunal

…..

(Emphasis added)"

3. From perusal of the captioned Application it is observed that the Transferee Company being a listed Company has not placed on record the NOC of the Stock Exchange on record in terms of SEBI (LODR) Regulations (ibid).

4. In absence of no objection of Stock Exchange on record we are unable to proceed ahead with the matter.

5. Accordingly, we direct the Transferee Company to bring on record the NOC of the stock exchange, by filing an Affidavit within 2 weeks from today. In case no prior approval was obtained then the same will be disclosed by the Transferee Company.

6. List on 04.01.2024.

Sd/-	**Sd/-**
(RAHUL PRASAD BHATNAGAR)	**(ASHOK KUMAR BHARDWAJ)**
MEMBER (T)	**MEMBER (J)**